

JUDICIAL ACTIVISM

A Bench Divided

There is a great deal of myth and mystery about the Supreme Court of India. A superficial thirst for news about the personalities and little understanding about the institution they comprise has made the Supreme Court a considerably controversial public institution. The Court is almost always in transition. Many judges come to the Bench too late in their career to leave a significant impression of their work, or for that matter have sufficient time to even think about doing so. Justice Bhrul Islam appointed to the Bench last month will retire in less than three years. The same goes for most chief justices though the incumbent is somewhat of an exception. However the judges who are now on the Bench are relatively young.

Salman Khurshid and Sudershan Kumar Misra,
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was unseated and the Supreme Court declined absolute stay of the High Court judgement. The court withstood the pressures of the Emergency when it was able to strike down the constitutional amendment that placed the prime minister above the law, but in 1976 came a volte face. The Supreme Court, in a baffling judgement, held that a citizen preventively detained illegally had no judicial remedy as long as the Emergency was in place. Justice H.R. Khanna dissented and was superseded.

The years that followed the Emergency saw a "Krishna Iyerisation" of the Indian jurisprudence. Iyer and Justice P.N. Bhagwati worked on redefining Indian constitutional law, and in *Maneka Gandhi's* case (decided in 1978) seized the opportunity to build upon the new theory laid down by Justice J.C. Shah in the *Bank Nationalisation Case* and ushered in "due process." As Justice Bhagwati said, the theatre of law changed. The era of public interest litigation was ushered in when anyone could petition the court against an infraction of fundamental rights. The court transformed itself into the judicial arm of social reform and change. All matters that could be handled within judicially manageable standards were now entertained in court.

The process of appointment (and transfer) of High Court and Supreme Court judges became controversial during the Emergency. In 1993, the court, reversing an earlier judgement, held that High Court and Supreme Court judges would be appointed (and transferred) by the executive upon the recommendation of a collegium of Supreme Court judges. Theirs would be the last word. The court had ring-fenced the judiciary.

It now embarked upon the task of cleaning up the environment—the physical (air and water pollution) and the political—viewing with disdain the executive's excuses to not implement the law. The court played its role as the defender of constitutional values. Whether it is cleaning up the Ganga, CNG buses in Delhi, closing polluting tanneries in Vellore, or quashing the "discretionary" grant of petrol pumps, the Supreme Court has become the refuge of a beleaguered citizen. The Mandal agitation and the Mandir controversy subsided only when the Supreme Court took charge—examples that indicate why the executive and political establishment have not revolted against this redefined role of the Supreme Court.

If it wasn't for the court, for the basic structure doctrine, the doctrine of standing and the doctrine of due process, being administered by judges placed beyond executive interference, the popular will—a euphemism for the will of the elected—would have emasculated the rights of the silent majority. Today the Supreme Court is very different from any other supreme court in the world—judges from other jurisdictions are amazed, at times amused, bewildered, and often impressed, by the way the Indian Supreme Court has revolutionised traditional notions of a constitutional court. What has stood it in good stead is its abiding faith that a constitutional court can't be a mute spectator when other institutions fail their duties and the rights of the silent are trampled upon. All unpopular causes or causes that bear a no-vote reward find their way to the apex court.

The Supreme Court has risen to the High standard set by M.C. Setalvad in his speech in 1950 by establishing itself in the consciousness of the Indian people. Unfortunately therein lies the problem of the present, for in a democracy it is neither possible nor desirable for institutions to live in such a state of imbalance as we see between the judiciary and the political executive on the other. We can only await a revolution in the political institutions.

The writer is former Solicitor-General and senior advocate, Supreme Court

P.N. BHAGWATI, Chief Justice, SC, 1985

"Two problems are the arrears of cases and making justice easily available to the common man."